



Office of the CEO

Corporate Secretariat

Promotion of Access to Information Act (PAIA) and

Protection of Personal Information Act (POPIA)

Manual

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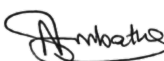
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1. PREAMBLE

- 1.1. Transparency, responsiveness and openness are critical and instrumental in fulfilling the Small Enterprise Development and Finance Agency SOC Limited's (Herein-after referred to as (SEDFA's) legislative mandate, which is central in achieving its mission to alleviate poverty and through its support to Micro, Small, and Medium Enterprises (MSMEs). Fair and equitable access to information is the cornerstone of social transformation and an important element of empowerment. This can enable Micro, Small, and Medium Enterprises (MSMEs) to analyse their situation independently and critically before they position their businesses or apply for funding.
- 1.2. SEDFA's Promotion of Access to Information Act (PAIA or "the Act") manual will enhance good governance, accountability, transparency and effectiveness by increasing public awareness of the SEDFA's developmental mandate and effectiveness by increasing public awareness of the SEDFA's developmental mandate and nation building and maintaining public dialogue.
- 1.3. The SEDFA PAIA manual is published in accordance with the regulations of Chapter 2, section 14 of the PAIA. The manual seeks to establish and maintain the framework for PAIA compliance as provided for in the Act and sets out the mandate of SEDFA, products and services, and the availability of its records as a public body. The manual further outlines the types of records held by SEDFA and explains how the requestors may submit a request to these records in terms of PAIA. Data subjects are allowed to make certain requests free of charge to the Organisation when certain personal information is being held as contemplated in section 23 of the POPI Act, for instance, the data subject has the right to know the identity of all third parties that have had access to their information. A data subject can also ask for a record of the information concerned within a reasonable time and at a prescribed fee if any.
- 1.4. The manual is available in English, Sesotho and isiZulu. Copies of the manual can be obtained from the Information Officer or the SEDFA website.

2. ESTABLISHMENT OF SEDFA

- 2.1. The incorporation of SEDFA, effective from 01 October 2024, stems from the signing of the National Small Enterprise Amendment Act 2024 (No. 21 of 2024) ("The Enabling Act") on 23 July 2024, and its subsequent gazetting on 30 September 2024.
- 2.2. The Small Enterprise Finance Agency (sefa), Small Enterprise Development Agency (Seda) and the Cooperative Banks Development Agency (CBDA) merged to form SEDFA, which is a developmental finance institution, listed as Schedule

3B of the in terms of the PFMA Act 01 of 1999 as amended, as a National Government Business Enterprise, with the State as the sole shareholder and the Minister of Small Business Development as the Executive Authority.

- 2.3. SEDFA complies with both the Public Finance Management Act 1 of 1999, and the Companies Act 71 of 2008.
- 2.4. As a developmental finance institution, SEDFA provides both financial and non-financial support to Micro-Small Medium Enterprises (MSMEs) with the objectives to:
 - I. Design and implement development support programs for small enterprises,
 - II. Promote service delivery network that enhances the contribution of small enterprises to the South African economy,
 - III. Foster economic growth, job creation, and equity in historically disadvantaged communities,
 - IV. Support, promote, and develop cooperative banks and cooperative financial institutions, and
 - V. Strengthen the capacity of service providers to support and enable small enterprises to compete successfully both domestically and internationally.

3. PURPOSE OF PAIA MANUAL

- 3.1. This PAIA Manual is useful for the public to:
 - 3.1.1. check the nature of the records held by SEDFA which may already be publicly available without the need to submit a formal PAIA request.
 - 3.1.2. have sufficient understanding of making a request for access to a record of SEDFA, by providing a description of the subjects on which SEDFA holds records and the categories of records held on each subject.
 - 3.1.3. access to all the relevant contact details of the Information Officer and or Deputy Information Officer who will assist the public with the records they intend to access.
 - 3.1.4. Know the description of the guide on using PAIA, as updated by the Regulator and obtaining access to it.
 - 3.1.5. know if SEDFA will process personal information, the purpose of processing personal information and the description of the categories of data subjects and of the information or categories of information relating thereto.
 - 3.1.6. know the description of the categories of data subjects and of the information or categories of information relating thereto.
 - 3.1.7. know the recipients or categories of recipients to whom the personal information may be supplied.

- 3.1.8. know if SEDFA has planned to transfer or process personal information outside the Republic of South Africa and the recipients or categories of recipients to whom the personal information may be supplied; and
- 3.1.9. know whether SEDFA has appropriate security measures to ensure the confidentiality, integrity and availability of the personal information which is to be processed.

4. OBJECTIVES OF PROMOTION OF ACCESS TO INFORMATION ACT NO. 2 OF 2000 ("PAIA")

4.1. The objectives of PAIA are to:

- 4.1.1. Give effect to the constitutional right of access to any information held by the State, that is held by another person and that is required for the exercise or protection of any right.
- 4.1.2. Set out justifiable limitations on the right of access to information aimed at protecting people's privacy, and confidential commercial information and ensuring effective, efficient and good governance.
- 4.1.3. Balance the right of access to information with all the other rights in the constitution.
- 4.1.4. Promote a culture of human rights and social justice.
- 4.1.5. Establish mechanisms and procedures to enable persons to obtain access to records as swiftly, inexpensively and effortlessly as is reasonably possible.

5. CONTACT DETAILS OF THE INFORMATION OFFICER AND DEPUTY INFORMATION OFFICER

INFORMATION OFFICER

Name: Mr Nkosikhona Mbatha (CEO)
Telephone Number: 012 748 9600
Email: nmbatha@sedfa.org.za

DEPUTY INFORMATION OFFICER

Name: Mr Bantu Mazingi (Group Company Secretary)
Telephone Number: 012 747 2565
Email: bmazingi@sedfa.org.za

All requests for access to records of SEDFA, and any internal appeal in terms of section of PAIA, shall be submitted for the attention of the SEDFA Deputy Information Officer through any one of the following methods:

Name of public body: Small Enterprise Development and Finance Agency SOC Ltd (SEDFA)

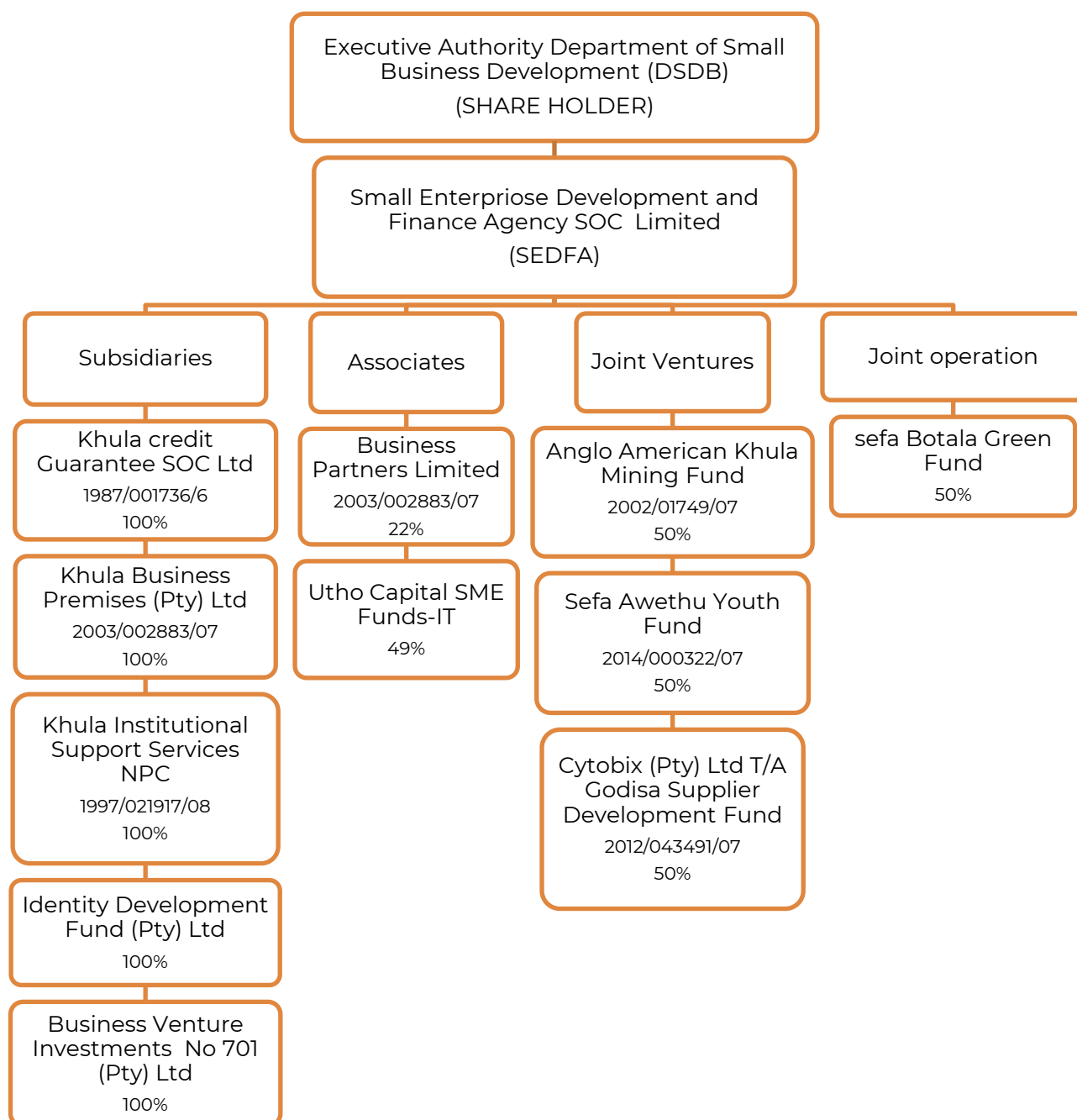
Physical address: Byls Bridge Office Park, Cnr Olievenhoutbosch Street & Jean Avenue Building 14, Block D.
11 Byls Bridge Boulevard Highveld Extension 73
Centurion
0157

Telephone number: 012 748 9600

Website: www.sedfa.org.za

Email: paia@sedfa.org.za

6. SEDFA GOVERNANCE STRUCTURE



7. Records held by SEDFA

7.1. Organisation Record Classification Key

Classification No	Access	Classification
1	May be disclosed	Public Access Document
2	May be disclosed	Subject to copyright
3	Limited Disclosure	request for own Personal information
4	May not be disclosed	Unreasonable disclosure of personal information
5	May not be disclosed	Request after commencement of criminal proceedings
6	May not be disclosed	Would breach the duty of confidence owed to a third party
7	May not be disclosed	Could harm the commercial information or financial Interests of a third party
8	May not be disclosed	Could harm the organisation or a third party in contract or other negotiations
9	May not be disclosed	Could compromise the safety of individuals or the protection of property
10	May not be disclosed	Legally privileged document
11	May not be disclosed	Commercial information of the organisation

7.2. SEDFA Records

Area	Subject	Classification
Lending Channel Responsible for lending administration, which includes applications, due diligence, approval and disbursements of funds.	Client application & business plans	6,7,8,11
	Disbursement schedule	6,7,8,11
	Client contract (legal Agreement)	6,7,8,11
	Client FICA information	3, 6,7,8,11
	Memorandum of Understanding or Agreement	6,7,8,11
	Non-disclosure agreement	6,7,8,11
Business Development and Support	Client applications for business support	6,7,8,11

Area	Subject	Classification
Responsible for the pre investment function which includes business support and mentoring services to start-ups, incubatees, funded clients, amongst other related activities as part of pre and post investment services. The Unit also conducts post investment monitoring.	Client performance reports and related information	6,7,8,11
Corporate Risk	Corporate risk management plan	11
Responsible for maintaining an acceptable risk profile while supporting the receipt of appropriate financial and development returns through the implementation of risk management policies, systems and frameworks.	Corporate business continuity management plan	11
	Compliance risk management plan	11
	Credit risk assessment	11
	Collections management information	11
Company Secretariat:	Organisational structure	2
Responsible for effective corporate governance, regulatory compliance, and Board administration within Sedfa	Memorandum of Incorporation	2
	Shareholders Compact	2
	Statutory Records	
	Requests for access to information in line with statutory provisions	2
	PAIA reports	11
Legal Services:	Legal Policies and procedures	3,11
Provides comprehensive legal solutions (including the drafting of agreements, negotiating instructions and effecting recoveries) which meets SEDFA's	Legal agreements	6,7,8,10,11

Area	Subject	Classification
and clients' needs and which enables SEDFA to achieve its mandate in a manner which ensures compliance with the law while reducing legal risks and safeguarding the SEDFA's interests	Settlement agreements	6,7,8,10,11
Internal Audit: Acts as an independent, objective assurance and consulting activity designed to add value and improve SEDFA's operations. It assists SEDFA to accomplish its objectives by bringing a systematic, disciplined approach to evaluate and improve the effectiveness of control and governance processes.	Internal Audit charter	3,11
	Procedures	3,11
	Audit plans	11
	Audit Reports	11
Human Capital Management: Responsible for the formulation, implementation and monitoring of people management strategies. Human Capital's goal is to ensure that SEDFA has progressive people management interventions, policies and practices in place to make it an effective and efficient organisation. <i>The nature of the information kept by this office requires strict adherence to POPIA provisions.</i>	Policies and procedures	3,11
	Recruitments and selection documentation	3,4,11
	Garnishee orders	4
	Disciplinary procedures	2,4
	Trade union recognition agreement	2,6,8,9
	Employment equity report	2,11
	Skills development report	2,6,11
	Employee/staff records	3,4,10
	Employee contracts	3,4,10
Finance: Responsible for the overall management of finances in SEDFA, including the processing of financial transactions, and reporting.	Policies and procedures	11
	Disbursement report	11
	Debtor statements	11
	Creditor statements	11
	Financial statements	11
	Supplier invoices	6,7,8,11
	Supplier service level agreements	6,7,8,11
	Proof of payments	3,11
	Supplier information	6,7,11

Area	Subject	Classification
	Procurement documentation	2
	Property management information	9
Information Technology: Responsible for ensuring that SEDFA's networks and technology are running effectively.	Policy and procedures	2
	IT Service level agreements	11
	Call records	3,11
	Audit trail reports	11
Strategy, Planning and Reporting: Responsible for guiding, developing and monitoring the implementation of SEDFA's strategy.	Policies and procedures	2
	Corporate plan	2
	Performance reports	2
	Balance score card	11
	Research papers	11
Supply Chain Management (SCM) Provides effective and efficient procurement-related services to SEDFA and its stakeholders by applying procurement best practices and optimal resource management, in compliance with SEDFA policies and relevant regulatory frameworks and legislation	Independent contractor records and contracts	4,6,7,11
	Tender applications	4
	Tender decisions and minutes	6,7,8,11
	Letter of tender awards	4,7,9
	Correspondence with contractors	4,6,7,11
Ecosystem and Stakeholder Management Responsible for collaboration across small enterprise ecosystems to foster growth, innovation, sustainability. The department further manages Sedfa stakeholder relationships, including public relations, marketing, and corporate communications to enhance Sedfa's reputation nationally and internationally.	Policies and procedures	3,11
	Press releases	2
	Sponsorships	2
	Corporate social responsibility	2
	Annual report	2
	Speeches by management	2

8. INFORMATION IS AUTOMATICALLY AVAILABLE - SECTION 15 (1) (A) REGULATION 5 (A) OF PAIA

8.1. All information available on our website <http://www.sedfa.org.za> is voluntarily disclosed. The following information/records can be obtained automatically without a formal request:

- 8.1.1. SEDFA marketing brochures.
- 8.1.2. Organisational structure, mission, vision and the functions of the various departments of SEDFA; and Annual Reports.
- 8.1.3. Legislation (National Small Business Amendment Act, 2024).

9. INFORMATION NOT AUTOMATICALLY AVAILABLE

9.1. SEDFA may, in certain instances, refuse access to records on any of the grounds set out in Chapter 4 of Part 3 of the Act as follows:

- 9.1.1. That access would result in the unreasonable disclosure of personal information about a third party.
- 9.1.2. The necessity of protecting the commercial information of a third party or of SEDFA.
- 9.1.3. The necessity of protecting the confidential information of a third party.
- 9.1.4. The necessity of protecting the safety of individuals and protecting property.
- 9.1.5. That a record constitutes privileged information for the purpose of legal proceedings; and
- 9.1.6. The necessity of protecting the research information of a third party or SEDFA.

10. INFORMATION AVAILABLE IN TERMS OF OTHER LEGISLATIONS

10.1. Where applicable to our operations, information is also available in terms of certain provisions of the following statutes:

- 10.1.1. Constitution of the Republic of South Africa No 106 of 1996
- 10.1.2. Basic Conditions of Employment Act No. 75 of 1997
- 10.1.3. Electronic Communications and Transactions Act No. 25 of 2002
- 10.1.4. Financial Intelligence Centre Act No. 32 of 2001
- 10.1.5. Occupational Health and Safety Act No. 85 of 1993
- 10.1.6. Occupational Injuries and Diseases Act No. 130 of 1993
- 10.1.7. Compensation for Occupational Injuries and Diseases Act No. 130 of 1993
- 10.1.8. National Archives and Records Service of South Africa Act No. 43 of 1996
- 10.1.9. Protection of Personal Information Act No. 4 of 2013
- 10.1.10. Electronic Communication and Transactions Act No. 25 of 2002

- 10.1.11. Public Finance Management Act No. 1 of 1999
- 10.1.12. Promotion of Access to Information Act No. 2 of 2000
- 10.1.13. Protection of Constitutional Democracy against Terrorist and Related Activities Act No. 33 of 2004
- 10.1.14. Prevention of Organised Crime Act No. 121 of 1998
- 10.1.15. Development Act No. 22 of 1940
- 10.1.16. Labour Relations Act No. 66 of 1995
- 10.1.17. Employment Equity Act No. 55 of 1998
- 10.1.18. Income Tax act No. 58 of 1962
- 10.1.19. Skills Development Act No. 9 of 1999
- 10.1.20. Value Added Tax Act No. 89 of 1991

10.2. NOTE: The SEDFA regulatory universe is broad, therefore the above list may not be exhaustive. A requester will be required to state the legislation under which information is required, and information will be provided in accordance with the related legislation.

11. INFORMATION AVAILABLE IN TERMS OF THE ACT BY SUBJECT/ BUSINESS

11.1. According to the Act, certain information should be made available on request from members of the public following certain procedures required by the Act. Certain disclosures may be refused. The following information can only be obtained by means of a formal request:

11.1.1. Finances and accounting records relating to the following categories:

- 11.1.1.1. Financial Reporting Cash Management Accounts Payable.
- 11.1.1.2. Cost and Management Accounting.
- 11.1.1.3. Taxation.
- 11.1.1.4. Money Market Investments.
- 11.1.1.5. Travel – to account for all travel-related matters.
- 11.1.1.6. General Ledger Reporting; and
- 11.1.1.7. Statutory Reporting.

11.1.2. Human Resources records relating to the following categories-

- 11.1.2.1. Talent Acquisition.
- 11.1.2.2. Talent Management Learning and Development (Internally Focused);
- 11.1.2.3. Client Learning and Development Performance Management Toolkit Knowledge Management.
- 11.1.2.4. Human Capital Shared Services and Delivery.
- 11.1.2.5. Employee Relations.
- 11.1.2.6. Remuneration and Benefits.
- 11.1.2.7. Employment Equity and Diversity Management; and

- 11.1.2.8. Provident fund policy.
- 11.1.2.9. Employee/staff records and
- 11.1.2.10. Employment contracts
- 11.1.2.11. Independent contractor records and contracts.

11.1.3. Marketing and Corporate Affairs

- 11.1.3.1. Sponsorships, Exhibitions and Marketing Outreach Events.
- 11.1.3.2. Branding and corporate identity; and
- 11.1.3.3. Promotional material, including brochures.

11.1.4. Insurance Records

- 11.1.4.1. Insurance policies taken out of for the benefit of SEDFA and its employees.

11.1.5. Immovable and Movable Property

- 11.1.5.1. Title deeds of all immovable property owned by SEDFA.
- 11.1.5.2. Agreements for the lease or sale of land or other immovable properties by SEDFA.
- 11.1.5.3. Agreements for the lease of movable property by SEDFA.
- 11.1.5.4. Mortgage bonds, liens, notarial bonds or security interests on property.
- 11.1.5.5. Credit sale agreements and hire purchase agreements; and
- 11.1.5.6. Other agreements for the purchase, ordinary sale, conditional sale, and hire of assets.

11.1.6. Computer Systems and Computer Programs

- 11.1.6.1. Agreements relating to computer systems and computer programs; and
- 11.1.6.2. Other documentation pertaining to computer systems and computer programs held by the SEDFA.

11.1.7. Other Agreements of SEDFA

- 11.1.7.1. Loans from third parties (including banks); Loans to third parties.
- 11.1.7.2. Suretyship agreements.
- 11.1.7.3. Security agreements, guarantees and indemnities.
- 11.1.7.4. Agreements restricting the trading activities of SEDFA.
- 11.1.7.5. Agency, management and distribution agreements.
- 11.1.7.6. Marketing agreements.
- 11.1.7.7. Standard conditions of business and standard- form contracts.
- 11.1.7.8. Agreements in terms of which SEDFA participates in joint ventures, consortiums, partnerships, incorporated and unincorporated associations.

- 11.1.7.9. Agreements with suppliers of SEDFA.
- 11.1.7.10. Agreements with customers of SEDFA; Confidentiality and non-disclosure agreements; Other interests and investments of SEDFA; Agreements with foreign entities; and
- 11.1.7.11. Documents pertaining to overseas interests and investments of SEDFA.

11.1.8. **Correspondence and Internal Reports**

- 11.1.8.1. Correspondence and internal reports of SEDFA.

11.1.9. **Information Relating to Legal Proceedings**

- 11.1.9.1. Records relating to legal proceedings involving SEDFA.

11.1.10. **Research, Scientific and Technical Information of SEDFA**

- 11.1.10.1. Documentation pertaining to research conducted by SEDFA.
- 11.1.10.2. Research reports prepared by SEDFA.
- 11.1.10.3. Scientific and/or technical information in the possession of SEDFA; and SEDFA's library consists of a collection of books periodicals, E-journals, electronic databases, CD-ROM's and materials relating to the business of SEDFA.

12. PROCESSING OF PERSONAL INFORMATION INTERMS OF PROTECTION OF PERSONAL INFORMATON, ACT 4 OF 2013 (POPIA)

12.1. Purpose of processing personal information

- 12.1.1. SEDFA processes personal information of data subjects under its care in the following manner:
 - 12.1.1.1. Staff administration and job applications.
 - 12.1.1.2. Biometric information for controlling access to the SEDFA office(s).
 - 12.1.1.3. Keeping of accounts and records.
 - 12.1.1.4. Visits to any premise of SEDFA.
 - 12.1.1.5. Procurement.
 - 12.1.1.6. Complying with relevant legislation such as the PFMA regulations and National Treasury instructions notes.
 - 12.1.1.7. Processing applications related to SEDFA primary business or other any other applications.
 - 12.1.1.8. Processing purposes listed herein comply with POPIA's principles of lawfulness, minimality, and security.

12.2. Descriptions of categories of data subjects and information

12.2.1. The table below specify the categories of data subjects in respect of whom SEDFA processes personal information and the nature or categories of the personal information being processed.

No.	Categories of data subjects	Information that may be processed
1	Natural person	1.1. Names and surname. 1.2. Contact details: contact number(s), fax number, email address. 1.3. Residential: Postal or business address. 1.4. Unique Identifier/Identity. 1.5. Number and confidential correspondence
2	Juristic person	2.1. Names of contact persons. 2.2. Name of legal entity. 2.3. Physical and postal address. 2.4. Contact details (contact number(s), fax number, email address). 2.5. Registration number. 2.6. Financial, commercial, scientific, or technical information and trade secrets
3	Employees	3.1. Gender, pregnancy, and marital status., 3.2. Race, age, language, and educational information (qualifications). 3.3. Financial information, employment history and ID number. 3.4. Physic and postal address. 3.5. Contact details; contact number(s), fax number, email address. 3.6. Criminal behaviour; well-being and their relatives (family members) race, medical, gender, sex, nationality, 3.7. Ethnic or social origin, age, physical or mental health, disability, religion, conscience, belief, culture, biometric information of the person.

12.3. Recipients to whom personal information may be supplied to

12.3.1. The table below specifies the person or category of recipients to whom SEDFA may disseminate personal information.

No.	Categories of personal information	Recipients or categories of recipients
1	Identity number and names, for criminal checks	MIE
2	Qualifications, for qualification verifications	MIE

3	Banking, Credit and payment history information	MIE
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12.4. Planned transborder flow of information

- 12.4.1. SEDFA does not have a planned transborder flow of information as the business of SEDFA is conducted within the borders of South Africa.
- 12.4.2. Storing information such as emails and user data on the cloud is managed by Microsoft, which has a signed confidentiality agreements with the Data Centre based in South Africa and replicated in Europe.

12.5. Information Security

- 12.5.1. Below are the measures to be implemented by SEDFA parties to ensure confidentiality, integrity, and availability of information:
 - 12.5.1.1. Data Encryption.
 - 12.5.1.2. Firewall.
 - 12.5.1.3. Access to the network using Multi-Factor Authentication (MFA) firewalls.
 - 12.5.1.4. Antivirus for the security of data.

13. PROCEDURE FOR REQUESTING ACCESS TO INFORMATION

- 13.1. If you wish to access any of the above categories of information, you are required to complete a request form as set out in annexure A hereto.
 - 13.1.1. These forms are available from SEDFA Information Officer (whose contact details are in section 3 of this manual); and at The Information Regulator website (info regulator.org.za)
 - 13.1.2. Once completed, the form must be forwarded to a Deputy Information Officer. The name, address and contact details of the Deputy Information Officer are listed in section 4 of this manual.
 - 13.1.3. Prescribed fees are applicable for requesting and accessing information in terms of the Act and are payable in advance. Details of these fees are contained in section 19 of this manual.
 - 13.1.4. Additional fees may be prescribed by regulation for the compilation of the information and any other administrative charges.
 - 13.1.5. Access to information in terms of PAIA is not automatic, the right that the applicant/ requester seeks to exercise or protect must be identified and provide reasons for such request.
 - 13.1.6. The applicant or requester will be notified in the manner indicated on the request form of the results of the application. SEDFA may approve or reject the application.
 - 13.1.7. SEDFA commits to providing a decision on requests within 30 calendar days, with an extension of up to 30 additional days for complex cases(i.e. requests involving multiple divisions or third-party consultations).

14. PERSONAL REQUESTER

- 14.1. A personal requester is a requester who is seeking access to a record containing the requester's own personal information.
- 14.2. SEDFA will voluntarily provide the requested information or give access to any record with regard to the requester's personal information. The prescribed fee for reproduction of the information requested will be charged.

15. REQUESTER

- 15.1. requester (other than a personal requester) is entitled to request access to information of third parties. However, SEDFA is not obliged to automatically grant access to such information. The requester must complete the prescribed form for access in terms of the Act, including the payment of a request and access fee.

16. REQUEST

- 16.1. A request for access to a record must be made on the prescribed form (attached hereto as Annexure A) to the Information Officer at his/her address, facsimile number or e-mail address in terms of Section 18 of the Act, as set out in this manual. The requester must provide sufficient detail on the request form to enable an official of the SEDFA to identify the record requested and the requester.
- 16.2. When completing the prescribed form, the requester should also indicate:
 - 16.2.1. A facsimile number or postal address or email address.
 - 16.2.2. If a request is made on behalf of another person, the requester must submit proof of the capacity in which the requester is making the request to the reasonable satisfaction of the Information Officer.
 - 16.2.3. A requestor who cannot read or write may present the request orally and such a request shall be recorded in writing and processed. The Deputy Information Officer shall provide guidance on the matter.
 - 16.2.4. The form must be adequately completed, with enough particulars for the official of SEDFA to identify the following:
 - i) Name and address of the requester.
 - ii) Description of the record(s) requested; and
 - iii) The applicable access fee will be charge should access be granted.
 - 16.2.5. The completed prescribed form must be addressed to the Information Officer and sent to SEDFA via mail or delivered to the physical address. The requester must pay the prescribed fee, before any further processing can take place.

17. FEES

- 17.1. The Act provides for two types of fees, namely:
- a) A request fee, which will be a standard fee; and
 - b) An access fee, which must be calculated by taking into account reproduction costs, search and preparation time and cost, as well as postal costs.
- 17.2. When the request is received by the Information Officer, he/she shall, by notice, require the requester, other than a personal requester, to pay the prescribed request fee (if any), before further processing of the request.
- 17.3. If the search for the record has been made and the preparation of the record for disclosure, including arrangement to make it available in the requested form, requires more than the hours prescribed in the regulations for this purpose, the Information Officer shall notify the requester to pay as a deposit the prescribed portion of the access fee which would be payable if the request is granted. The Information Officer shall withhold a record until the requester has paid the fees.
- 17.4. A requester whose request for access to a record has been granted, must pay an access fee for reproduction and for search and preparation, and for any time reasonably required in excess of the prescribed hours to search for and prepare the record for disclosure including making arrangements to make it available in the requested form.
- 17.5. If a deposit has been paid in respect of a request for access, which is refused, then the Information Officer concerned must repay the deposit to the requester.
- 17.6. PAYMENT METHOD
- The requester may deposit the request / access fee into the following bank account for **SEDFA**:
- Bank: RMB Corporate Bank
Account number: 58860023217
Branch code: 255005
Type of account: Corporate Cheque Account
Reference: Surname and Initials of Requester

18. DECISION

- 18.1. SEDFA will, within 30 days of receipt of the request, decide whether to grant or decline the request and give notice with reasons to that effect.
- 18.2. The 30-day period with which SEDFA has to decide whether to grant or refuse the request, may be extended for a further period of not more than 30 days if the

request is for a large amount of information, or the request requires a search for information held at another office of SEDFA and the information cannot reasonably be obtained within the original 30-day period. SEDFA will notify the requester in writing should an extension become necessary.

19. REMEDIES FOR NON-COMPLIANCE WITH THE ACT

- 19.1. Any requester who is dissatisfied with any decision of SEDFA in respect of a request for access to a record of SEDFA can either lodge an internal appeal to SEDFA or approach the High Court or another court of similar status to seek redress.
- 19.2. Should the requester wish to lodge an internal appeal it must be lodged within 60 days of the receipt of the notice that their request was not approved or within 30 days if notice to a third party is required.
- 19.3. An internal appeal must be lodged in the prescribed Form B in annexure B.

20. FEES PAYABLE AS PRESCRIBED BY THE ACT

- 20.1. The fee for a copy of the manual as contemplated in regulation 5 (c) of the Act is R0,60 for every photocopy of an A4 sized page or part thereof.
- 20.2. The request fee payable by every requester, other than a personal requester, referred to in regulation 7(2) of the Act is R100.00.
- 20.3. The fees for reproduction referred to in regulation 7(1) of the Act are as follows:

Type of Reproduction	Prescribed Amount
For every photocopy of an A4-size page or part thereof	R1,50
For every printed copy of an A4-size page or part thereof held on a computer or in electronic or machine-readable form	R1.50
For a copy in a computer-readable form on Compact disc	
If provided by the requester	R40,00
If provided to the requester	R60.00

Type of Reproduction	Prescribed Amount
For a transcription of visual images, for an A4-size page or part thereof	Service to be outsourced. Will depend on a quotation from the Service provider
For a copy of visual images	Service to be outsourced. Will depend on a quotation from the Service provider
For a transcription of an audio record, for an A4 size page or part thereof	R24.00
For a copy of an audio record	R60,00

For any request that would require more than six hours to access or to prepare for disclosure one third of the access fee is payable as a deposit by the requester is R100.00 for each hour or part of an hour, excluding the first hour, reasonably required for such search and preparation. The actual postage is payable when a copy of a record must be posted to a requester.

FORM 2

REQUEST FOR ACCESS TO RECORD [Regulation 7]

NOTE:

- 1. Proof of identity must be attached by the requester.*
- 2. If requests made on behalf of another person, proof of such authorisation, must be attached to this form.*

TO: The Information Officer

E-mail address: _____

Fax number: _____

Mark with an "X"

☐

Request is made in my own name

☐

Request is made on behalf of another person.

PERSONAL INFORMATION			
Full Names			
Identity Number			
Capacity in which request is made (when made on behalf of another person)			
Postal Address			
Street Address			
E-mail Address			
Contact Numbers	Tel. (B):		Facsimile:
	Cellular:		
Full names of person on whose behalf request is made (if applicable):			
Identity Number			
Postal Address			

Street Address			
E-mail Address			
Contact Numbers	Tel. (B)		Facsimile
	Cellular		
PARTICULARS OF RECORD REQUESTED <i>Provide full particulars of the record to which access is requested, including the reference number if that is known to you, to enable the record to be located. (If the provided space is inadequate, please continue on a separate page and attach it to this form. All additional pages must be signed.)</i>			
Description of record or relevant part of the record:			
Reference number, if available			
Any further particulars of record			

TYPE OF RECORD (Mark the applicable box with an "X")	
Record is in written or printed form	
Record comprises virtual images (this includes photographs, slides, video recordings, computer-generated images, sketches, etc)	
Record consists of recorded words or information which can be reproduced in sound	
Record is held on a computer or in an electronic, or machine-readable form	
FORM OF ACCESS (Mark the applicable box with an "X")	
Printed copy of record (including copies of any virtual images, transcriptions and information held on computer or in an electronic or machine-readable form)	
Written or printed transcription of virtual images (this includes photographs, slides, video recordings, computer-generated images, sketches, etc)	
Transcription of soundtrack (written or printed document)	
Copy of record on flash drive (including virtual images and soundtracks)	
Copy of record on compact disc drive (including virtual images and soundtracks)	
Copy of record saved on cloud storage server	
MANNER OF ACCESS (Mark the applicable box with an "X")	

Personal inspection of record at registered address of public/private body (including listening to recorded words, information which can be reproduced in sound, or information held on computer or in an electronic or machine-readable form)	
Postal services to postal address	
Postal services to street address	
Courier service to street address	
Facsimile of information in written or printed format (including transcriptions)	
E-mail of information (including soundtracks if possible)	
Cloud share/file transfer	
Preferred language (Note that if the record is not available in the language you prefer, access may be granted in the language in which the record is available)	

PARTICULARS OF RIGHT TO BE EXERCISED OR PROTECTED

If the provided space is inadequate, please continue on a separate page and attach it to this Form. The requester must sign all the additional pages.

Indicate which right is to be exercised or protected	
Explain why the record requested is required for the exercise or protection of the aforementioned right:	

FEES

- a) **A request fee must be paid before the request will be considered.**
- b) **You will be notified of the amount of the access fee to be paid.**
- c) **The fee payable for access to a record depends on the form in which access is required, and the reasonable time required to search for and prepare a record.**

d) If you qualify for exemption of the payment of any fee, please state the reason for exemption	
Reason	

You will be notified in writing whether your request has been approved or denied and if approved the costs relating to your request, if any. Please indicate your preferred manner of correspondence:

Postal address	Facsimile	Electronic communication (Please specify)

Signed at _____ this _____ day of _____ 20 _____

Signature of Requester / person on whose behalf request is made

FOR OFFICIAL USE

Reference number:	
Request received by: (State Rank, Name and Surname of Information Officer)	
Date received:	
Access fees:	
Deposit (if any):	

Signature of Information Officer

INTERNAL APPEAL FORM

FORM 4

[Regulation 9]

Reference Number:

PARTICULARS OF PUBLIC BODY				
Name of Public Body				
Name and Surname of Information Officer:				
PARTICULARS OF COMPLAINANT WHO LODGES THE INTERNAL APPEAL				
Full Names				
Identity Number				
Postal Address				
Contact Numbers	Tel. (B)		Facsimile	
	Cellular			
E-Mail Address				
Is the internal appeal lodged on behalf of another person?		Yes		No
If answer is "yes", capacity in which an internal appeal on behalf of another person is lodged: <i>(Proof of the capacity in which appeal is lodged, if applicable, must be attached.)</i>				
PARTICULARS OF PERSON ON WHOSE BEHALF THE INTERNAL APPEAL IS LODGED <i>(If lodged by a third party)</i>				
Full Names				
Identity Number				
Postal Address				
Contact Numbers	Tel. (B)		Facsimile	

	Cellular	
E-Mail Address		

DECISION AGAINST WHICH THE INTERNAL APPEAL IS LODGED <i>(mark the appropriate box with an "X")</i>	
Refusal of request for access	
Decision regarding fees prescribed in terms of section 22 of the Act	
Decision regarding the extension of the period within which the request must be dealt with in terms of section 26(1) of the Act	
Decision in terms of section 29(3) of the Act to refuse access in the form requested by the requester	
Decision to grant request for access	
GROUND FOR APPEAL <i>(If the provided space is inadequate, please continue on a separate page and attach it to this form. all the additional pages must be signed)</i>	
State the grounds on which the internal appeal is based:	
State any other information that may be relevant in considering the appeal:	

You will be notified in writing of the decision on your internal appeal. Please indicate your preferred manner of notification:

Postal address	Facsimile	Electronic communication (Please specify)

Signed at _____ this _____ day of _____ 20 _____

Signature of Appellant/Third party

FOR OFFICIAL USE
OFFICIAL RECORD OF INTERNAL APPEAL

Appeal received by: <i>(state rank, name and surname of Information Officer)</i>				
Date received:				
Appeal accompanied by the reasons for the information officer's decision and, where applicable, the particulars of any third party to whom or which the record relates, submitted by the information officer:			Yes	
			No	
OUTCOME OF APPEAL				
Refusal of request for access. Confirmed?	Yes		New decision <i>(if not confirmed)</i>	
	No			
Fees (Sec 22). Confirmed?	Yes		New decision <i>(if not confirmed)</i>	
	No			
Extension (Sec 26(1)). Confirmed?	Yes		New decision <i>(if not confirmed)</i>	
	No			
Access (Sec 29(3)). Confirmed?	Yes		New decision <i>(if not confirmed)</i>	
	No			
Request for access granted. Confirmed?	Yes		New decision <i>(if not confirmed)</i>	
	No			

Signed at _____ this _____ day of _____ 20 _____

Relevant Authority